



U.S. Department
of Transportation

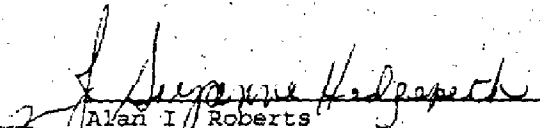
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10097 (PTE)
THIRD REVISION May 21, 1993

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 10097. The expiration date of the exemption for the party(ies) is December 31, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 9 1995

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Alliant Techsystems, Inc.
New Brighton, MN

December 28, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

MAY 21 1993

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of Transportation

Research and
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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10097
(THIRD REVISION)

1. Hercules, Inc., Magna, Utah, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of rocket motors for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of rocket motors in a propulsive state and with igniters installed in packagings not authorized in 49 CFR 173.92, and provides no relief from any regulation other than as specifically stated. Note: Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.
2. BASIS. This exemption is based on an application from Hercules, Inc. dated June 16, 1992, submitted in accordance with 49 CFR 107.105 and letter dated March 1, 1993 and supplemental letters dated April 21 and May 11, 1993 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). First, second and third stage rocket motors for the Pegasus missile; the first, second, and third stage of the Pegasus XL; and the first, second and third stage rocket motors for the Taurus missile, Class B explosives, Division 1.3C. NOTE: Effective October 1, 1993, the appropriate numeric hazard class or division descriptions must be used in place of the written hazard class descriptions.
4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket motor.
5. REGULATION AFFECTED. 49 CFR 173.88(e)(2)(ii), 173.92(a)(1); 173.92(b).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURE. Packaging prescribed is: First Stage Motor - Packaging consists of 2 chocks which are described and analyzed in Space Data Corporation report SDC TM-3918 dated December 19, 1988. Second Stage Motor - Packaging consists of one chock which is described and analyzed in Space Data Corporation report SDC TM-3959 Rev. B dated December 8, 1988 or report SDC TM-9303 dated December 22, 1992. Third Stage Motor - Packaging consists of a dolly which is described and analyzed in Space Data report SDC TM-3996 dated December 2, 1988.

All of these motors must be transported in the SICBM Transporter (Serial No. RGTZ 560 -301 Drawing No. 83319J00157) or the ORGW transporter (RGTZ 560 -302 TS Drawing 890303) which is described and analyzed in the documents attached to the application for exemption. When the first stage motor is transported, it shall be the only motor in the transport vehicle. The second and third stage motors may be transported together. Nonhazardous materials needed for handling the motors may be shipped in the transport vehicle with them. The motors must be blocked and braced in the transport vehicle in accordance with the appropriate descriptions and drawings in the application.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Motors shipped under this exemption may be in a propulsive state and have igniters installed under the conditions referenced in the October 21, 1988 letter from the Department of Defense (Defense Advanced Research Project Agency).

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. June 30, 1994.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 21 1994

(DATE)

MAY 21 1993

Continuation of 2nd Rev. DOT-E 10097

Page 3

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA.